Delaware Department of Natural Resources and Environmental Control
Delaware Coastal Management Program

Initial Review: _____
Updated On: _____
Complete: _____
Official Use Only

Coastal Zone Management Act Federal Consistency Form

This document provides the Delaware Coastal Management Program (DCMP) with a Federal Consistency Determination or Certification for activities regulated under the Coastal Zone Management Act of 1972, as amended, and NOAA's Federal Consistency Regulations, 15 C.F.R. Part 930. Federal agencies and other applicants for federal consistency are not required to use this form; it is provided to applicants to facilitate the submission of a Consistency Determination or Consistency Certification. In addition, federal agencies and applicants are only required to provide the information required by NOAA's Federal Consistency Regulations.

Project/Activity Name:	

I. Federal Agency or Non-Federal Applicant Contact Information:

Contact Name/Title: Nathaniel Alper

Federal Agency Contractor Name (if applicable): AZ-RI Consultants

Federal Agency: Department of Housing and Urban Development
(either the federal agency proposing an action or the federal agency issuing a federal license/permit or financial assistance to a non-federal applicant)

Mailing Address: 919 W. 34th Street, #4706

City: Baltimore State: MD Zip Code: 21211

E-mail: alper@az-ri.com Telephone #: (443) 600-3545

II. Federal Consistency Category:

- (●) Federal Activity or Development Project (15 C.F.R. Part 930, Subpart C)
- ( ) Outer Continental Shelf Activity (15 C.F.R. Part 930, Subpart E)
- ( ) Federal Financial Assistance (15 C.F.R. Part 930, Subpart F)
- ( ) Federal License or Permit Activity (15 C.F.R. Part 930, Subpart D)
- ( ) Federal License or Permit Activity which occurs wholly in another state (interstate consistency activities identified in DCMP's Policy document)

III. Detailed Project Description (attach additional sheets if necessary):

IV. General Analysis of Coastal Effects (attach additional sheets if necessary):

[New Construction or Ground Disturbance]
AZ-RI Consultants reviewed the project against the DCMP Enforcable Policies and found that based on the size, scope, and location of the project, it will be consistent to the maximum extent practicable with the enforcable policies of the DCMP.

[or]

[No new construction or no ground disturbance] AZ-RI Consultants reviewed the project against the DCMP Enforcable Policies and found that based on the size, scope, and location of the project, it will has no potential for reasonably forseeable impacts on Delaware's coastal uses or resources and is therefore consistent with the enforceable policies of the Delaware Coastal Management Program.

V. Detailed Analysis of Consistency with DCMP Enforceable Policies (attach additional sheets if necessary)**:**

Policy 5.1: Wetlands Management

Policy 5.2: Beach Management

The project is not on or near a beach.

Policy 5.3: Coastal Waters Management (includes wells, water supply, and stormwater management. Attach additional sheets if necessary)

This project will not impact coastal waters. It will use municipal water supply and stormwater managment with no new wells.

Policy 5.4: Subaqueous Land and Coastal Strip Management

This project is not near Subaqueous land or the coastal strip.

Policy 5.5: Public Lands Management

This project is not on public lands.

Policy 5.6: Natural Lands Management

This project is not on a natural preserve.

Policy 5.7: Flood Hazard Areas Management

Policy 5.8: Port of Wilmington

This project is not near the port of Wilmington. [or] The project is in Wilmington and conforms with the advisory policies of 5.8.

Policy 5.9: Woodlands and Agricultural Lands Management

Policy 5.10: Historic and Cultural Areas Management

This project is not near any historic or culturally important places or properties. A section 106 request was submitted to confirm this. A repsonse has not yet been recieved. All conditions, if any, will be abided by.

Policy 5.11: Living Resources

This project will not impact Living Resources as defined in 5.11.

Policy 5.12 Mineral Resources Management

This project will not impact mineral resources and does not involve any mineral extraction.

Policy 5.13: State Owned Coastal Recreation and Conservation

This project is not on state owned land.

Policy 5.14: Public Trust Doctrine

This project does not impact, nor is near any waterways to which the Public Trust Doctine would apply.

Policy 5.15: Energy Facilities

This project is not an energy facility.

Policy 5.16: Public Investment

The project is not of the type which 5.16 is applicable.

Policy 5.17: Recreation and Tourism

The project is not relating to recreation or tourism.

Policy 5.18: National Defense and Aerospace Facilities

The project is not, nor is it in the vicinity of, a national defense or aerospace facility.

Policy 5.19: Transportation Facilities

This project is not a transportation facility.

Policy 5.20: Air Quality Management

Policy 5.21: Water Supply Management

The project does not impact water supply through a new well or underground injection.

Policy 5.22: Waste Disposal Management

The project will make use of municipal waste managment. It is not expected to produce any hazardous waste or any waste other than typical household waste.

Policy 5.23: Development

The project seeks to develop in an urban area, consistent with the advisory policies of 5.23

Policy 5.24: Pollution Prevention

The project is not expected to be a signficiant generator or source of pollutants.

Policy 5.25: Coastal Management Coordination

This request is part of a HUD Environmental Reivew under CFR 25 Part 58.

VI. JPP and RAS Review (Check all that apply)**:**

Has the project been reviewed in a monthly Joint Permit Processing and/or Regulatory Advisory Service meeting?

☐ JPP ☐ RAS ☒ None

*If yes, provide the date of the meeting(s): _____

VII. Statement of Certification/Determination and Signature (Check one and sign below)**:**

☐ **FEDERAL AGENCY CONSISTENCY DETERMINATION.** Based upon the information, data, and analysis included herein, the federal agency, or its contracted agent, listed in (I) above, finds that this proposed activity is consistent to the maximum extent practicable with the enforceable policies of the Delaware Coastal Management Program.

OR

☐ **FEDERAL AGENCY NEGATIVE DETERMINATION.** Based upon the information, data, and analysis included herein, the federal agency, or its contracted agent, listed in (I) above, finds that this proposed activity will not have any reasonably foreseeable effects on Delaware's coastal uses or resources (Negative Determination) and is therefore consistent with the enforceable policies of the Delaware Coastal Management Program.

OR

☐ **NON-FEDERAL APPLICANT'S CONSISTENCY CERTIFICATION.** Based upon the information, data, and analysis included herein, the non-federal applicant for a federal license or permit, or state or local government agency applying for federal funding, listed in (I) above, finds that this proposed activity complies with the enforceable policies of the Delaware Coastal Management Program and will be conducted in a manner consistent with such program.

Signature:			
Printed Name:		Date:	

Pursuant to 15 C.F.R. Part 930, the Delaware Coastal Management Program must provide its concurrence with or objection to this consistency determination or consistency certification in accordance with the deadlines listed below. Concurrence will be presumed if the state's response is not received within the allowable timeframe.

Federal Consistency Review Deadlines:

Federal Activity or Development Project (15 C.F.R. Part 930, Subpart C)	60 days with option to extend an additional 15 days or stay review (15 C.F.R. § 930.41)
Federal License or Permit (15 C.F.R. Part 930, Subpart D)	Six months, with a status letter at three months. The six month review period can be stayed by mutual agreement. (15 C.F.R. § 930.63)
Outer Continental Shelf Activity (15 C.F.R. Part 930, Subpart E)	Six months, with a status letter at three months. If three month status letter not issued, then concurrence presumed. The six month review period can be stayed by mutual agreement. (15 C.F.R. § 930.78)
Federal Financial Assistance to State or Local Governments (15 C.F.R. Part 930, Subpart F)	State Clearinghouse schedule

OFFICIAL USE ONLY:

Reviewed By:	Fed Con ID:	Date Received:
Public notice dates: to	Comments Received: ☐ NO ☐ YES *[attach comments]*	
Decision type: *(objections or conditions attach details)*	_ Decision Date:	